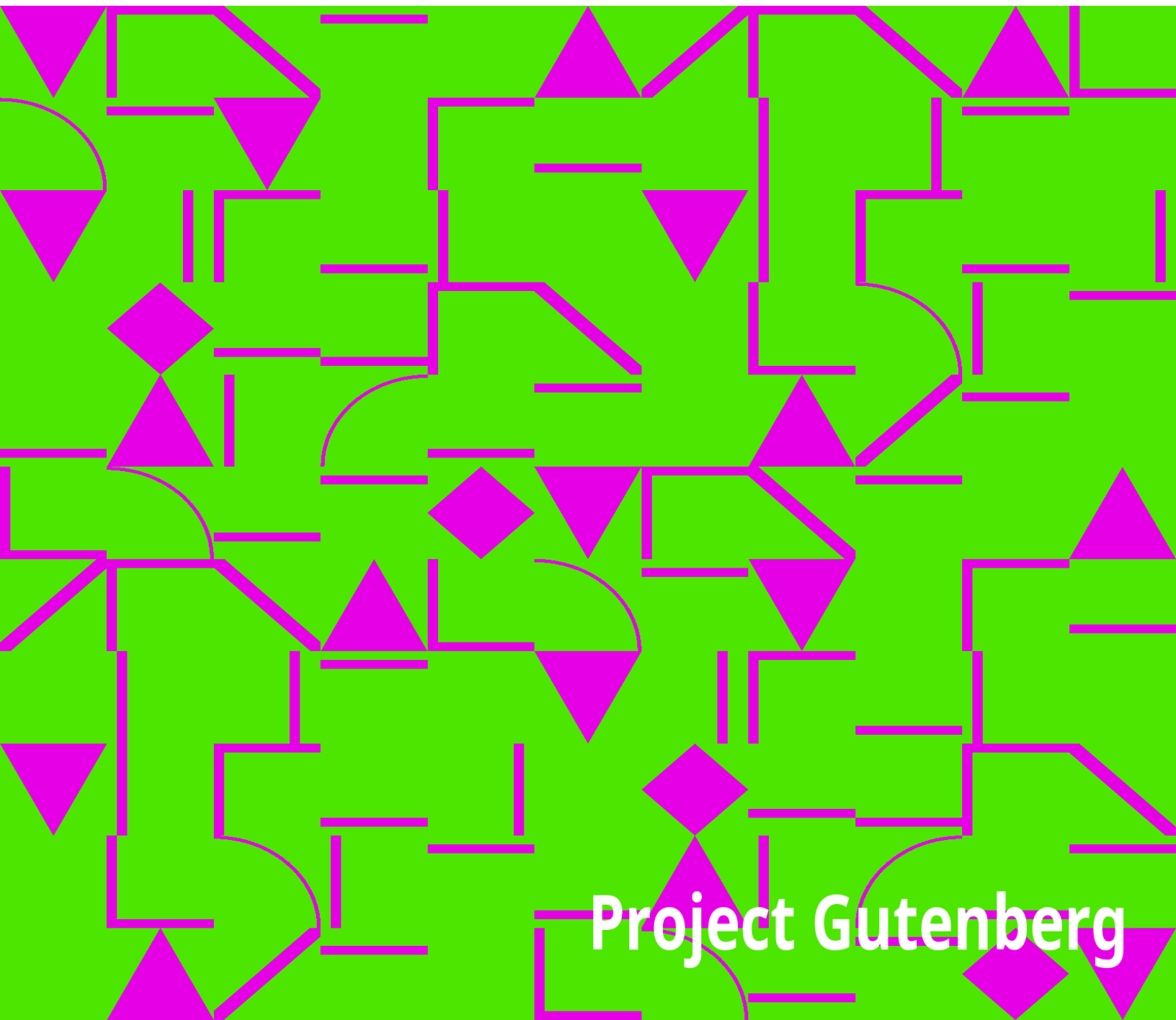


Some Anomalies of the Short Story (from Literature and Life)

William Dean Howells



Project Gutenberg

Some Anomalies of the Short Story (from Literature and Life)

William Dean Howells

Project Gutenberg

The Project Gutenberg eBook of Some Anomalies of the Short Story (from Literature and Life)

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Some Anomalies of the Short Story (from Literature and Life)

Author: William Dean Howells

Release date: October 22, 2004 [eBook #3384]

Most recently updated: January 8, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/3384

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK SOME
ANOMALIES OF THE SHORT STORY (FROM LITERATURE AND
LIFE) ***

Produced by David Widger

LITERATURE AND LIFE—Some Anomalies of the Short Story

by William Dean Howells

SOME ANOMALIES OF THE SHORT STORY

The interesting experiment of one of our great publishing houses in putting out serially several volumes of short stories, with the hope that a courageous persistence may overcome the popular indifference to such collections when severally administered, suggests some questions as to this eldest form of fiction which I should like to ask the reader's patience with. I do not know that I shall be able to answer them, or that I shall try to do so; the vitality of a question that is answered seems to exhale in the event; it palpitates no longer; curiosity flutters away from the faded flower, which is fit then only to be folded away in the 'hortus siccus' of accomplished facts. In view of this I may wish merely to state the problems and leave them for the reader's solution, or, more amusingly, for his mystification.

I.

One of the most amusing questions concerning the short story is why a form which is singly so attractive that every one likes to read a short story when he finds it alone is collectively so repellent as it is said to be. Before now I have imagined the case to be somewhat the same as that of a number of pleasant people who are most acceptable as separate householders, but who lose caste and cease to be desirable acquaintances when gathered into a boarding-house.

Yet the case is not the same quite, for we see that the short story where it is ranged with others of its species within the covers of a magazine is so welcome that the editor thinks his number the more brilliant the more short story writers he can call about his board, or under the roof of his pension. Here the boardinghouse analogy breaks, breaks so signally that I was lately moved to ask a distinguished editor why a book of short stories usually failed and a magazine usually succeeded because of them. He answered, gayly, that the short stories in most books of them were bad; that where they were good, they went; and he alleged several well-known instances in which books of prime short stories had a great vogue. He was so handsomely interested in my inquiry that I could not well say I thought some of the short stories which he had boasted in his last number were indifferent good, and yet, as he allowed, had mainly helped sell it. I had in mind many books of short stories of the first excellence which had failed as

decidedly as those others had succeeded, for no reason that I could see; possibly there is really no reason in any literary success or failure that can be predicted, or applied in another Base.

I could name these books, if it would serve any purpose, but, in my doubt, I will leave the reader to think of them, for I believe that his indolence or intellectual reluctance is largely to blame for the failure of good books of short stories. He is commonly so averse to any imaginative exertion that he finds it a hardship to respond to that peculiar demand which a book of good short stories makes upon him. He can read one good short story in a magazine with refreshment, and a pleasant sense of excitement, in the sort of spur it gives to his own constructive faculty. But, if this is repeated in ten or twenty stories, he becomes fluttered and exhausted by the draft upon his energies; whereas a continuous fiction of the same quantity acts as an agreeable sedative. A condition that the short story tacitly makes with the reader, through its limitations, is that he shall subjectively fill in the details and carry out the scheme which in its small dimensions the story can only suggest; and the greater number of readers find this too much for their feeble powers, while they cannot resist the incitement to attempt it.

My theory does not wholly account for the fact (no theory wholly accounts for any fact), and I own that the same objections would lie from the reader against a number of short stories in a magazine. But it may be that the effect is not the same in the magazine because of the variety in the authorship, and because it would be impossibly jolting to read all the short stories in a magazine 'seriatim'. On the other hand, the identity of authorship gives a continuity of attraction to the short stories in a book which forms that exhausting strain upon the imagination of the involuntary co-partner.

II.

Then, what is the solution as to the form of publication for short stories, since people do not object to them singly but collectively, and not in variety, but in identity of authorship? Are they to be printed only in the magazines, or are they to be collected in volumes combining a variety of authorship? Rather, I could wish, it might be found feasible to purvey them in some pretty shape where each would appeal singly to the reader and would not exhaust him in the subjective after-work required of him. In this event many short stories now cramped into undue limits by the editorial exigencies of the magazines might expand to greater length and breadth, and without ceasing to be each a short story might not make so heavy a demand upon the subliminal forces of the reader.

If any one were to say that all this was a little fantastic, I should not contradict him; but I hope there is some reason in it, if reason can help the short story to greater favor, for it is a form which I have great pleasure in as a reader, and pride in as an American. If we have not excelled all other moderns in it, we have certainly excelled in it; possibly because we are in the period of our literary development which corresponds to that of other peoples when the short story pre-eminently flourished among them. But when one has said a thing like this, it immediately accuses one of loose and inaccurate statement, and requires one to refine upon it, either for one's own peace of conscience or for one's safety from the thoughtful reader. I am not

much afraid of that sort of reader, for he is very rare, but I do like to know myself what I mean, if I mean anything in particular.

In this instance I am obliged to ask myself whether our literary development can be recognized separately from that of the whole English-speaking world. I think it can, though, as I am always saying American literature is merely a condition of English literature. In some sense every European literature is a condition of some other European literature, yet the impulse in each eventuates, if it does not originate indigenously. A younger literature will choose, by a sort of natural selection, some things for assimilation from an elder literature, for no more apparent reason than it will reject other things, and it will transform them in the process so that it will give them the effect of indigeneity. The short story among the Italians, who called it the novella, and supplied us with the name devoted solely among us to fiction of epical magnitude, refined indefinitely upon the Greek romance, if it derived from that; it retrenched itself in scope, and enlarged itself in the variety of its types. But still these remained types, and they remained types with the French imitators of the Italian novella. It was not till the Spaniards borrowed the form of the novella and transplanted it to their racier soil that it began to bear character, and to fruit in the richness of their picaresque fiction. When the English borrowed it they adapted it, in the metrical tales of Chaucer, to the genius of their nation, which was then both poetical and humorous. Here it was full of character, too, and more and more personality began to enlarge the bounds of the conventional types and to imbue fresh ones. But in so far as the novella was studied in the Italian sources, the French, Spanish, and English literatures were conditions of Italian literature as distinctly, though, of course, not so thoroughly, as American literature is a condition of English literature. Each borrower gave a national cast to the thing borrowed, and that is what has happened with us, in the full measure that our nationality has differenced itself from the English.

Whatever truth there is in all this, and I will confess that a good deal of it seems to me hardy conjecture, rather favors my position that we are in some such period of our literary development as those other peoples when the short story flourished among them. Or, if I restrict our claim, I may safely claim that they abundantly had the novella when they had not the novel at all, and we now abundantly have the novella, while we have the novel only subordinately and of at least no such quantitative importance as the English, French, Spanish, Norwegians, Russians, and some others of our esteemed contemporaries, not to name the Italians. We surpass the Germans, who, like ourselves, have as distinctly excelled in the modern novella as they have fallen short in the novel. Or, if I may not quite say this, I will make bold to say that I can think of many German novelle that I should like to read again, but scarcely one German novel; and I could honestly say the same of American novelle, though not of American novels.

III.

The abeyance, not to say the desuetude, that the novella fell into for several centuries is very curious, and fully as remarkable as the modern rise of the short story. It began to prevail in the dramatic form, for a play is a short story put on the stage; it may have satisfied in that form the early love of it, and it has continued to please in that form; but in its original shape it quite vanished, unless we consider the little studies and sketches and allegories of the Spectator and Tatler and Idler and Rambler and their imitations on the Continent as guises of the novella. The germ of the modern short story may have survived in these, or in the metrical form of the novella which appeared in Chaucer and never wholly disappeared. With Crabbe the novella became as distinctly the short story as it has become in the hands of Miss Wilkins. But it was not till our time that its great merit as a form was felt, for until our time so great work was never done with it. I remind myself of Boccaccio, and of the Arabian Nights, without the wish to hedge from my bold stand. They are all elemental; compared with some finer modern work which deepens inward immeasurably, they are all of their superficial limits. They amuse, but they do not hold, the mind and stamp it with large and profound impressions.

An Occidental cannot judge the literary quality of the Eastern tales; but I will own my suspicion that the perfection of the Italian work is philological rather than artistic, while the web woven by Mr. James or Miss Jewett, by

Kielland or Bjornson, by Maupassant, by Palacio Valdes, by Giovanni Verga, by Tourguenief, in one of those little frames seems to me of an exquisite color and texture and of an entire literary preciousness, not only as regards the diction, but as regards those more intangible graces of form, those virtues of truth and reality, and those lasting significances which distinguish the masterpiece.

The novella has in fact been carried so far in the short story that it might be asked whether it had not left the novel behind, as to perfection of form; though one might not like to affirm this. Yet there have been but few modern fictions of the novel's dimensions which have the beauty of form many a novella embodies. Is this because it is easier to give form in the small than in the large, or only because it is easier to hide formlessness? It is easier to give form in the novella than in the novel, because the design of less scope can be more definite, and because the persons and facts are fewer, and each can be more carefully treated. But, on the other hand, the slightest error in execution shows more in the small than in the large, and a fault of conception is more evident. The novella must be clearly imagined, above all things, for there is no room in it for those felicities of characterization or comment by which the artist of faltering design saves himself in the novel.

IV.

The question as to where the short story distinguishes itself from the anecdote is of the same nature as that which concerns the bound set between it and the novel. In both cases the difference of the novella is in the motive, or the origination. The anecdote is too palpably simple and single to be regarded as a novella, though there is now and then a novella like *The Father*, by Bjornson, which is of the actual brevity of the anecdote, but which, when released in the reader's consciousness, expands to dramatic dimensions impossible to the anecdote. Many anecdotes have come down from antiquity, but not, I believe, one short story, at least in prose; and the Italians, if they did not invent the story, gave us something most sensibly distinguishable from the classic anecdote in the novella. The anecdote offers an illustration of character, or records a moment of action; the novella embodies a drama and develops a type.

It is not quite so clear as to when and where a piece of fiction ceases to be a novella and becomes a novel. The frontiers are so vague that one is obliged to recognize a middle species, or rather a middle magnitude, which paradoxically, but necessarily enough, we call the novelette. First we have the short story, or novella, then we have the long story, or novel, and between these we have the novelette, which is in name a smaller than the short story, though it is in point of fact two or three times longer than a short story. We may realize them physically if we will adopt the magazine

parlance and speak of the novella as a one-number story, of the novel as a serial, and of the novelette as a two-number or a three-number story; if it passes the three-number limit it seems to become a novel. As a two-number or three-number story it is the despair of editors and publishers. The interest of so brief a serial will not mount sufficiently to carry strongly over from month to month; when the tale is completed it will not make a book which the Trade (inexorable force!) cares to handle. It is therefore still awaiting its authoritative avatar, which it will be some one's prosperity and glory to imagine; for in the novelette are possibilities for fiction as yet scarcely divined.

The novelette can have almost as perfect form as the novella. In fact, the novel has form in the measure that it approaches the novelette; and some of the most symmetrical modern novels are scarcely more than novelettes, like Tourguenief's *Dmitri Rudine*, or his *Smoke*, or *Spring Floods*. The *Vicar of Wakefield*, the father of the modern novel, is scarcely more than a novelette, and I have sometimes fancied, but no doubt vainly, that the ultimated novel might be of the dimensions of *Hamlet*. If any one should say there was not room in *Hamlet* for the character and incident requisite in a novel, I should be ready to answer that there seemed a good deal of both in *Hamlet*.

But no doubt there are other reasons why the novel should not finally be of the length of *Hamlet*, and I must not let my enthusiasm for the novelette carry me too far, or, rather, bring me up too short. I am disposed to dwell upon it, I suppose, because it has not yet shared the favor which the novella and the novel have enjoyed, and because until somebody invents a way for it to the public it cannot prosper like the one-number story or the serial. I should like to say as my last word for it here that I believe there are many novels which, if stripped of their padding, would turn out to have been all along merely novelettes in disguise.

It does not follow, however, that there are many novelle which, if they were duly padded, would be found novelettes. In that dim, subjective region where the aesthetic origins present themselves almost with the authority of inspirations there is nothing clearer than the difference between the short-story motive and the long-story motive. One, if one is in that line of work, feels instinctively just the size and carrying power of the given motive. Or, if the reader prefers a different figure, the mind which the seed has been dropped into from Somewhere is mystically aware whether the seed is going to grow up a bush or is going to grow up a tree, if left to itself. Of course, the mind to which the seed is intrusted may play it false, and wilfully dwarf the growth, or force it to unnatural dimensions; but the critical observer will easily detect the fact of such treasons. Almost in the first germinal impulse the inventive mind forefeels the ultimate difference and recognizes the essential simplicity or complexity of the motive. There will be a prophetic subdivision into a variety of motives and a multiplication of characters and incidents and situations; or the original motive will be divined indivisible, and there will be a small group of people immediately interested and controlled by a single, or predominant, fact. The uninspired may contend that this is bosh, and I own that something might be said for their contention, but upon the whole I think it is gospel.

The right novel is never a congeries of novelle, as might appear to the uninspired. If it indulges even in episodes, it loses in reality and vitality. It is one stock from which its various branches put out, and form it a living growth identical throughout. The right novella is never a novel cropped back from the size of a tree to a bush, or the branch of a tree stuck into the ground and made to serve for a bush. It is another species, destined by the agencies at work in the realm of unconsciousness to be brought into being of its own kind, and not of another.

V.

This was always its case, but in the process of time the short story, while keeping the natural limits of the primal novella (if ever there was one), has shown almost limitless possibilities within them. It has shown itself capable of imparting the effect of every sort of intention, whether of humor or pathos, of tragedy or comedy or broad farce or delicate irony, of character or action. The thing that first made itself known as a little tale, usually salacious, dealing with conventionalized types and conventionalized incidents, has proved itself possibly the most flexible of all the literary forms in its adaptation to the needs of the mind that wishes to utter itself, inventively or constructively, upon some fresh occasion, or wishes briefly to criticise or represent some phase or fact of life.

The riches in this shape of fiction are effectively inestimable, if we consider what has been done in the short story, and is still doing everywhere. The good novels may be easily counted, but the good novelle, since Boccaccio began (if it was he that first began) to make them, cannot be computed. In quantity they are inexhaustible, and in quality they are wonderfully satisfying. Then, why is it that so very, very few of the most satisfactory of that innumerable multitude stay by you, as the country people say, in characterization or action? How hard it is to recall a person or a fact out of any of them, out of the most signally good! We seem to be delightfully nourished as we read, but is it, after all, a full meal? We become

of a perfect intimacy and a devoted friendship with the men and women in the short stories, but not apparently of a lasting acquaintance. It is a single meeting we have with them, and though we instantly love or hate them dearly, recurrence and repetition seem necessary to that familiar knowledge in which we hold the personages in a novel.

It is here that the novella, so much more perfect in form, shows its irremediable inferiority to the novel, and somehow to the play, to the very farce, which it may quantitatively excel. We can all recall by name many characters out of comedies and farces; but how many characters out of short stories can we recall? Most persons of the drama give themselves away by name for types, mere figments of allegory, and perhaps oblivion is the penalty that the novella pays for the fineness of its characterizations; but perhaps, also, the dramatic form has greater facilities for repetition, and so can stamp its persons more indelibly on the imagination than the narrative form in the same small space. The narrative must give to description what the drama trusts to representation; but this cannot account for the superior permanency of the dramatic types in so great measure as we might at first imagine, for they remain as much in mind from reading as from seeing the plays. It is possible that as the novella becomes more conscious, its persons will become more memorable; but as it is, though we now vividly and with lasting delight remember certain short stories, we scarcely remember by name any of the people in them. I may be risking too much in offering an instance, but who, in even such signal instances as *The Revolt of Mother*, by Miss Wilkins, or *The Dulham Ladies*, by Miss Jewett, can recall by name the characters that made them delightful?

VI.

The defect of the novella which we have been acknowledging seems an essential limitation; but perhaps it is not insuperable; and we may yet have short stories which shall supply the delighted imagination with creations of as much immortality as we can reasonably demand. The structural change would not be greater than the moral or material change which has been wrought in it since it began as a yarn, gross and palpable, which the narrator spun out of the coarsest and often the filthiest stuff, to snare the thick fancy or amuse the lewd leisure of listeners willing as children to have the same persons and the same things over and over again. Now it has not only varied the persons and things, but it has refined and verified them in the direction of the natural and the supernatural, until it is above all other literary forms the vehicle of reality and spirituality. When one thinks of a bit of Mr. James's psychology in this form, or a bit of Verga's or Kielland's sociology, or a bit of Miss Jewett's exquisite veracity, one perceives the immense distance which the short story has come on the way to the height it has reached. It serves equally the ideal and the real; that which it is loath to serve is the unreal, so that among the short stories which have recently made reputations for their authors very few are of that peculiar cast which we have no name for but romanticistic. The only distinguished modern writer of romanticistic novelle whom I can think of is Mr. Bret Harte, and he is of a period when romanticism was so imperative as to be almost a condition of fiction. I am never so enamoured of a cause that I will not

admit facts that seem to tell against it, and I will allow that this writer of romanticistic short stories has more than any other supplied us with memorable types and characters. We remember Mr. John Oakhurst by name; we remember Kentuck and Tennessee's Partner, at least by nickname; and we remember their several qualities. These figures, if we cannot quite consent that they are persons, exist in our memories by force of their creator's imagination, and at the moment I cannot think of any others that do, out of the myriad of American short stories, except Rip Van Winkle out of Irving's *Legend of Sleepy Hollow*, and Marjorie Daw out of Mr. Aldrich's famous little caprice of that title, and Mr. James's *Daisy Miller*.

It appears to be the fact that those writers who have first distinguished themselves in the novella have seldom written novels of prime order. Mr. Kipling is an eminent example, but Mr. Kipling has yet a long life before him in which to upset any theory about him, and one can only instance him provisionally. On the other hand, one can be much more confident that the best novelle have been written by the greatest novelists, conspicuously Maupassant, Verga, Bjornson, Mr. Thomas Hardy, Mr. James, Mr. Cable, Tourguenief, Tolstoy, Valdes, not to name others. These have, in fact, all done work so good in this form that one is tempted to call it their best work. It is really not their best, but it is work so good that it ought to have equal acceptance with their novels, if that distinguished editor was right who said that short stories sold well when they were good short stories. That they ought to do so is so evident that a devoted reader of them, to whom I was submitting the anomaly the other day, insisted that they did. I could only allege the testimony of publishers and authors to the contrary, and this did not satisfy him.

It does not satisfy me, and I wish that the general reader, with whom the fault lies, could be made to say why, if he likes one short story by itself and four short stories in a magazine, he does not like, or will not have, a dozen

short stories in a book. This was the baffling question which I began with and which I find myself forced to end with, after all the light I have thrown upon the subject. I leave it where I found it, but perhaps that is a good deal for a critic to do. If I had left it anywhere else the reader might not feel bound to deal with it practically by reading all the books of short stories he could lay hands on, and either divining why he did not enjoy them, or else forever foregoing his prejudice against them because of his pleasure in them.

*** END OF THE PROJECT GUTENBERG EBOOK SOME
ANOMALIES OF THE SHORT STORY (FROM LITERATURE AND
LIFE) ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.